ZWELEMPI MPOFU
versus
THE STATE

HIGH COURT OF ZIMBABWE
MHURI J
HARARE, 11 December 2025

Bail Application Pending Trial

Mr *T Musi,* for the Applicant
Ms *T M Havazvidi,* for the Respondent

MHURI J: Applicant was arrested and placed on remand on a charge of robbery as defined in s 126 of the Criminal Law Codification and Reform Act [*Chapter 9:23*].

Applicant applied for bail pending trial in this court, which application I dismissed on 11 December 2025.

Applicant through his legal practitioners requested for reasons for the dismissal so that they can approach the Supreme Court on appeal.

On the date of hearing of the application I issued an ex-tempore ruling stating the reasons for the dismissal. Therefore, I hereby reproduce the reasons.

Section 50 of the Zimbabwe Constitution provides for the rights of arrested and detained persons. In particular subsection (1) subparagraph (d) provides that:

> "Any person who is arrested-
> (a)…
> (b)…
> (c)…
> (d) must be released unconditionally or on reasonable conditions, pending a charge or trial, unless there are compelling reasons justifying their continued detention,
> (e) …"

It is therefore a constitutional right to be released on bail. This right however, has certain limitations as stated in subparagraph (d) above.

Applicant is facing an armed robbery charge. This is a third schedule offence and in terms of s 115C 2(a)(ii) of the Criminal Procedure and Evidence Act [*Chapter 9:07*] applicant had the onus to show on a balance of probabilities that it is in the interests of justice that he be released on bail.

Section 117(2) of the Criminal Procedure and Evidence Act provides the factors the court should consider in refusing to grant bail in an application such as this one.

Subsection (2) provides

> "The refusal to grant bail and the detention of an accused in custody shall be in the interests of justice where one or more of the following grounds are established-
> (a) Where there is a likelihood that the accused if he or she were released on bail, will-
> (i) Endanger the safety of the public or any particular person or will commit an offence referred to in the First Schedule;
> (ii) Not stand his or her trial or appear to receive sentence; or
> (iii) Attempt to influence or intimidate witnesses or to conceal or destroy evidence; or
> (iv) Undermine or jeopardise the objectives or proper functioning of the criminal justice system including the bail system."

In *casu,* applicant is facing a very serious offence of armed robbery. It is noted that the seriousness of an offence on its own can not be a ground to deny bail. However, considering the manner the robbery was committed, applicant cannot escape a very lengthy prison term. The lengthy prison term can motivate applicant to flee and not stand trial. It is also noted that from the Investigating Officer's narration of events, applicant was arrested after a long follow up and in Bulawayo a city hundreds of kilometres away from Marondera where the offence was committed.

Also, noted is the applicant's warned and cautioned statement, though not confirmed adds weight to the state case. At this juncture however it is not for the court to adjudicate on the admissibility or otherwise of the warned and cautioned statement.

Upon arrest, and upon investigations applicant made indications to the Police and part of the proceeds of the robbery were recovered from him. This strengthens the state case.

It was also noted that applicant has another similar charge pending under Dombotombo CR 105/9/25. This goes to show that he has a propensity to commit crime, especially robbery. Applicant's accomplices are still at large and if released on bail there is high likelihood of re offending and also interfering with witnesses or investigations.

All having been considered, I was of the considered view that the evidence against applicant was very strong. It would therefore not be in the interests of justice to grant applicant bail. Granting him bail will erode the public's confidence in the criminal justice system and in particular the bail system.

In that regard, I found it proper to dismiss the application as I did.

MHURI J:……

Sadowera Kuwana Legal Practitioners, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners